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June 25, 2019

Via Email Only

Joelle Magyar, Superintendent
Brecksville-Broadview Heights City School District
6638 Mill Road
Brecksville OH 44141

Re: Legal Opinion Regarding Cocurricular Activities

Dear Ms. Magyar:

This is in response to your request for a legal opinion clarifying the District's obligation to nonpublic school students who wish to participate in extracurricular or cocurricular activities at Brecksville-Broadview Heights Schools.

Ohio Rev. Code §3313.5331 entitled "Access to Public School Extracurricular Activities by Nonpublic School Students" and §3313.5312 entitled "Access to Public School Extracurricular Activities by Homeschooled Students" state that a student enrolled in a chartered or nonchartered, nonpublic school or a student who was receiving home instruction shall be afforded the opportunity to participate in any extracurricular activity offered at the District school to which the student otherwise would be assigned during that school year. It is noted that the term "extracurricular activity" has the same meaning as in §3313.537 of the Revised Code which defines an extracurricular activity as "a pupil activity program that a school or school district operates and is not included in the school district's graded course of study." (Emphasis added.)

Accordingly, if the activity to which a nonpublic or homeschooled student seeks participation is included in the school district's graded course of study, the law does not provide for such participation. Moreover, there is nothing in the law to suggest that activities which are a combination of a graded activity and an activity outside of the traditional school day would be included in the definition of extracurricular activity. It is my understanding that one such student desires to participate in marching band, which is a graded course. Based on the above, it is my opinion that the District is not obliged to permit a student to participate in such activity, as it is a course for which a grade is given.

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Should you require further explanation, please feel free to contact me.

Sincerely,

ENNIS BRITTON CO., LPA



Giselle S. Spencer

GSS/jd